Marking AI

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy

02. For students

03. Security overview

04. PAIA manual

05. Terms

Competitor website

01 | Privacy

https://marking.ai/privacy

Webpage text snapshot | Retrieved 10 October 2026

Legal

Privacy policy

What we collect, why, who we share it with, how long we keep it, and your rights - for teachers, schools, students and parents. Last updated 6 October 2026.

Does Marking.ai use student work to train AI?

Ask ChatGPTAsk ClaudeAsk Gemini

No. We do not use student work, marking guides, marks or feedback to train, fine-tune or develop any AI model, ours or anyone else's, and our AI provider is contractually prohibited from using it to improve its models. A teacher reviews and changes everything before it is recorded or shared. Student work is stored in the European Union. We use samples of marked work to test how accurate our marking is - testing, not training - and a school can opt out. We do not sell personal information and never market to students.

The three roles we play

For student work uploaded through an account, the school is the controller (responsible party under POPIA) and we are the processor (operator), acting on the school's instructions. We are a controller for our own business data - teacher accounts, billing, analytics and our marketing to teachers. And we are a controller for the direct student upload and results links, where a student interacts with us without an account; we state that plainly rather than claiming to be a processor for everything.

What we collect

About teachers: name and sign-in details, school and teaching context, marking preferences, subscription and usage records, support conversations, and IP and browser information for security. About students, on the school's behalf: name as written on the work, class or set, a school identifier or feedback email where a teacher records one, the submitted work itself including handwriting, the AI transcription and marks, feedback and annotations, and - where a student uses a link - an IP address and access times. We have no field for a date of birth, home address or any special category of information.

Artificial intelligence

We use the paid tier of Google's Gemini API to read work, transcribe answers, propose marks against your marking guide, draft feedback and summarise performance. Every output is a proposal a teacher can change, and nothing reaches a student until a teacher approves it. Under Google's paid-tier terms, Google does not use our prompts or its responses to improve its products or models; it logs content briefly only to detect misuse. We do not train any model on your data, and we are moving this processing to a European region.

Students and children's information

Almost every student whose work passes through Marking.ai is a child, and the school establishes the lawful basis for processing it. We never market to students, do not track whether a student opens a feedback email, do not build a profile of a student, and switch session recording off on the student upload and results pages. When a student opens a link, our analytics and support tools record the visit and browser type with the IP address anonymised at collection, and we are removing third-party scripts from those pages.

Testing our marking accuracy

We keep a set of examples used to test how well our marking performs. When a teacher corrects a proposed mark, that correction - with a copy of the relevant submission and marking guide - may be added to it. It is accessible only to our staff, never appears in the product, and is used to measure accuracy, not to train models. Because these are copies, an example can remain in the test set after the original submission is deleted. A school or teacher can opt out and we will remove existing examples; we are building this as an in-product setting.

Who we share information with

We do not sell personal information. We share it with our sub-processors, each under contract. We use Google Analytics on our website, and Google Ads on our website and sign-up pages for visitors who accept advertising cookies. When you sign up, Google Ads also receives a one-way hashed copy of your email address, so we can see whether the sign-up followed a click on one of our ads; we never send it your address itself. For session recording and analytics, we identify teachers by an internal identifier rather than name or email (alongside that hashed copy of your email, which our analytics provider passes to Google Ads), filter student names and free-text work out of analytics events, and anonymise IP addresses at collection. Recordings of teacher-facing pages can show student content, are held in the EU with restricted access, and are deleted after 30 days.

Where your information goes

Our database and file storage are in the EU (Frankfurt). Several providers, and Google's AI processing, are in the United States, under EU Standard Contractual Clauses and the UK Addendum. Marking.ai is a South African company whose staff access the systems remotely; for UK or EEA schools, transferring data to us is a restricted transfer covered by the UK International Data Transfer Agreement or the EU SCCs in our Data Processing Addendum.

How long we keep things, and deletion

We keep student work while the account exists and until the school instructs deletion; billing records for seven years; session recordings for 30 days; analytics events for 12 months. Deleting work in the product removes it from your account immediately, and permanent erasure of the underlying records is available on request - for schools, within 30 days under our Data Processing Addendum. We are building tooling to make in-product deletion permanent by default and to let you delete your own account.

Your rights, and contact

Depending on where you are, you can ask for access, correction, deletion, objection, restriction and portability, object to direct marketing at any time, and complain to a regulator. Requests about a student's work normally go to the school, which holds the record. Write to privacy@marking.ai and we respond within 30 days. Our manual under section 51 of the Promotion of Access to Information Act is at https://www.marking.ai/security/paia.

Marking.ai (Pty) Ltd, registration number 2024/023842/07, Unit 60, 32 Witney Street, Bryanston, Sandton, Gauteng, 2191, South Africa. Information Officer: Jamie Rood. Contact: privacy@marking.ai.

Assessment terms explained

Plain-English definitions of the vocabulary used on this page.

AI markingAI marking is the use of artificial intelligence to assess student work against defined criteria - a mark scheme or a teacher's own marking guidelines - and to draft marks and feedback for a teacher to review.

Assessment for learningAssessment for learning is the practice of using evidence of what students currently understand to decide what to teach next, and to help students see what they need to do to improve.

Assessment objectivesAssessment objectives are the categories of skill a qualification tests - commonly labelled AO1, AO2 and AO3 - each carrying a defined share of the available marks.

Comparative judgementComparative judgement is an assessment method in which markers repeatedly choose the better of two pieces of work, and those paired decisions are combined statistically into a rank order.

Criterion-referenced assessmentCriterion-referenced assessment judges work against defined standards of what a student should know or be able to do, rather than against how other students performed.

ExemplarAn exemplar is a piece of work - often a real student answer - presented with its marks and commentary to show what a particular standard looks like in practice.

Questions about how we handle school work?

The security pages set out what we hold, where it is processed and who else touches it. If you cannot find an answer there, a person will reply.

Ask a questionHow we handle school data

02 | For students

https://marking.ai/privacy/students

Webpage text snapshot | Retrieved 10 October 2026

For students and parents

How Marking.ai handles your work

A short guide for students, parents and carers. Your school has its own privacy notice too, and that is the main one - this fills in our part. Last updated 22 August 2026.

Does a computer decide my mark?

Ask ChatGPTAsk ClaudeAsk Gemini

No. Your teacher does. Our software reads your work and suggests a mark and some feedback, and then your teacher checks it, changes anything they disagree with, and only then does it become your mark. They can rewrite the feedback, correct the mark, or mark the whole thing again. Nothing reaches you until your teacher chooses to send it. Software gets things wrong sometimes - it can misread handwriting - which is exactly why a teacher checks.

For students

Your teacher uploads your work, our software suggests a mark and feedback, and your teacher decides. We keep your name as it appears on your work, your class or year group, your work itself, what our software read your answers as, your marks and feedback, and - only if your teacher added it to send you your feedback - your email address.

Sometimes a teacher gives you a link to upload your own work: you type your name and upload your file, we record your device's internet address for about a day only to stop the page being misused, and you will not see any marks on that page. If you get your results by email, it comes from your teacher and we do not check whether you opened it - we turned that off deliberately, because students are often under 18.

Things we promise

We will never send you advertising; your email is used to send your feedback and nothing else. We never sell your information. We do not use your work to train artificial intelligence - your work is used to mark your work, and that is all. And we do not build a profile of you.

If you want to see what we have, or ask us to delete it, ask your school first - they hold your record and they decide. You can also write to us at privacy@marking.ai and we will help, and tell your school.

For parents and carers

In data protection terms your child's school is the controller and we are the processor: the school decides what is uploaded and why, and we act on its instructions, so requests about your child's records should go to the school first. The one exception is where a student uses an upload or results link or gets feedback by email - for that direct interaction we treat ourselves as a controller, and the promises on this page apply to us.

Your child's work is stored in the European Union, in Frankfurt. Marking.ai is a South African company and our staff access the systems remotely for support. Our marking uses artificial intelligence supplied by Google, and under our agreement Google does not use your child's work to improve its own models. We keep a set of examples to test how accurate our marking is, which can include a copy of a submission - that is testing, not training, and schools can opt out. Work is kept while the school's account exists and deleted or returned within 30 days of the school asking; deleting work in the product removes it from the account straight away, and permanent deletion is something we do on request.

If you are unhappy, speak to the school first, or write to us at privacy@marking.ai. You can also complain to your data protection regulator: in the UK the Information Commissioner's Office, in South Africa the Information Regulator, or in the EEA your national supervisory authority.

Marking.ai (Pty) Ltd, registration number 2024/023842/07, Unit 60, 32 Witney Street, Bryanston, Sandton, Gauteng, 2191, South Africa. Information Officer: Jamie Rood. Contact: privacy@marking.ai.

Assessment terms explained

Plain-English definitions of the vocabulary used on this page.

AI markingAI marking is the use of artificial intelligence to assess student work against defined criteria - a mark scheme or a teacher's own marking guidelines - and to draft marks and feedback for a teacher to review.

Assessment for learningAssessment for learning is the practice of using evidence of what students currently understand to decide what to teach next, and to help students see what they need to do to improve.

Assessment objectivesAssessment objectives are the categories of skill a qualification tests - commonly labelled AO1, AO2 and AO3 - each carrying a defined share of the available marks.

Comparative judgementComparative judgement is an assessment method in which markers repeatedly choose the better of two pieces of work, and those paired decisions are combined statistically into a rank order.

Criterion-referenced assessmentCriterion-referenced assessment judges work against defined standards of what a student should know or be able to do, rather than against how other students performed.

ExemplarAn exemplar is a piece of work - often a real student answer - presented with its marks and commentary to show what a particular standard looks like in practice.

Questions about how we handle school work?

The security pages set out what we hold, where it is processed and who else touches it. If you cannot find an answer there, a person will reply.

Ask a questionHow we handle school data

03 | Security overview

https://marking.ai/security

Webpage text snapshot | Retrieved 10 October 2026

Security & Trust

The questions your DPO will ask

Marking.ai processes student work. This section sets out how, where and who else is involved - with the documentation a procurement team needs behind each answer.

Book a demoSee the compliance pack

Is Marking.ai safe for schools to use with student work?

Ask ChatGPTAsk ClaudeAsk Gemini

Marking.ai processes student work in order to mark it, and a teacher approves every mark before a student sees it. Student work is stored in the EU and processed by a named set of sub-processors under Standard Contractual Clauses. We do not train any AI model on student work, and our AI provider is contractually barred from doing so. Our privacy policy, a pre-completed DPIA and a data processing agreement are all available for your assessment.

Verification status

What we can evidence today

Every line below is something we can put a signed document or a line of code behind. It is not everything a procurement team will ask - if what you need is not here, ask us and we will tell you where it has got to, including where the answer is no.

Verification status of Marking.ai's security and data-protection claims, as at 31 August 2026

Claim | Status |

Marks handwritten and typed work | Yes |

Every mark cites the words that earned it | Yes |

A teacher approves before a student sees anything | Yes |

Starting a trial requires no payment card | Yes |

Student work is stored in the EU (Frankfurt) | Yes |

AI processing and transactional email in the US, under Standard Contractual Clauses and the UK Addendum | Yes |

Student work is never used to train an AI model, ours or our provider's | Yes |

A pre-completed DPIA and a standard DPA, for your assessment | Yes |

The mechanism

Every mark cites the words that earned it

Marking.ai marks against the marking guide a teacher uploads, criterion by criterion, and returns the exact words in the student's answer behind each mark along with the page they were found on. That is what makes a mark checkable in seconds rather than taken on trust - and it is a fact about how the system works, not a claim about how often it is right.

Marked against the teacher's own uploaded guide, not a general standard

The exact student text and page number returned behind each mark

A teacher reviews and approves every mark before a student sees it

How accurately it marks

Sample class

GCSE Geography - Coastal Landscapes · Emma Richardson

32/40

Questions

Section A - Physical18/22Question 1.14/4Question 1.25/6Question 1.35/6Question 1.44/6

Section B - Human14/18Question 2.14/4Question 2.25/8Question 2.35/6

Total32/40

Question 1.44/6Review suggestedMarking guide

QuestionUsing a named example, explain how coastal management strategies have been used to protect an area from erosion.Student answer

In Holderness on the East Yorkshire coast, several coastal management strategies have been used. Hard engineering approaches include sea walls at Bridlington and Hornsea, which reflect wave energy to protect the towns behind them. Rock armour has been placed at Mappleton to absorb wave energy. However, these defences have caused problems further down the coast because they interrupt sediment movement, leading to increased erosion at places like Cowden.

Strengths□Excellent use of a named case study with specific locations.□Mentions knock-on effects of hard engineering - shows evaluation skills.

Areas for improvement·Evaluation could be more balanced - soft engineering and managed retreat deserve more depth.

Mark breakdown

4 of 6 marks. Strong case study use with specific place names and strategies. The mark scheme awards up to 4 for description and 2 for evaluation - soft engineering and cost-benefit analysis are underdeveloped for full evaluation marks.

Your assessment

The short answers, and the documents behind them

One position per area, stated plainly. The full documentation - our DPIA, our data processing agreement and the security overview - is available for a school's assessment on request.

Data protection

What we hold, where it goes, and who processes it.

Safeguarding

How pupil work is handled, and what is flagged to a person.

Platform security

Where the product runs, who can reach it, and how access is controlled.

Responsible AI

Where the model is used, and where a teacher decides.

See the compliance pack

Built for how schools handle data

Data stored in the EU

No training on student work

A teacher approves every mark

Answers

Common questions

Still stuck?

Ask us anything - a real person answers, in term time.

Ask a question

01

Will it replace or deskill teachers?

No. Marking.ai drafts; teachers decide. Nothing is released until a teacher approves it. It removes the repetitive first pass so teachers spend more time teaching and on the judgement only they can make.

02

Who processes student work?

Marking.ai processes student work in order to mark it, and uses Google's Gemini API to do so.

03

Do you train AI on our students' work?

No. We do not use student work, marking guides, marks or feedback to train, fine-tune or develop any AI model, ours or a third party's, and our AI provider is contractually prohibited from using it to improve its own models. We keep a small test set to measure marking accuracy, which is testing rather than training and which schools can opt out of.

Assessment terms explained

Plain-English definitions of the vocabulary used on this page.

AI markingAI marking is the use of artificial intelligence to assess student work against defined criteria - a mark scheme or a teacher's own marking guidelines - and to draft marks and feedback for a teacher to review.

Assessment for learningAssessment for learning is the practice of using evidence of what students currently understand to decide what to teach next, and to help students see what they need to do to improve.

Assessment objectivesAssessment objectives are the categories of skill a qualification tests - commonly labelled AO1, AO2 and AO3 - each carrying a defined share of the available marks.

Comparative judgementComparative judgement is an assessment method in which markers repeatedly choose the better of two pieces of work, and those paired decisions are combined statistically into a rank order.

Criterion-referenced assessmentCriterion-referenced assessment judges work against defined standards of what a student should know or be able to do, rather than against how other students performed.

ExemplarAn exemplar is a piece of work - often a real student answer - presented with its marks and commentary to show what a particular standard looks like in practice.

The evidence your DPO will ask for

Ask us for the pack - our DPIA, our data processing agreement and the security overview - and a person will send it. If you would rather be walked through it first, book a demo for your school.

Book a demoSee the compliance pack

04 | PAIA manual

https://marking.ai/security/paia

Webpage text snapshot | Retrieved 10 October 2026

South Africa

PAIA manual

Our manual under section 51 of the Promotion of Access to Information Act, 2 of 2000, read with POPIA. Published free of charge, as the Act requires. Last updated 22 August 2026.

How do I request access to a record held by Marking.ai?

Ask ChatGPTAsk ClaudeAsk Gemini

Make your request on Form 2 of the PAIA Regulations, available from the Information Regulator and from us, and send it to privacy@marking.ai. The request must identify the record and the requester, specify the form of access, and - for a request to a private body - identify the right you seek to exercise or protect and why the record is required for it. We respond within 30 days, extendable by a further 30 in the circumstances PAIA allows. Where access is refused we give reasons and explain your right to complain to the Information Regulator or apply to a court.

Who we are

Marking.ai (Pty) Ltd, registration number 2024/023842/07, a private company incorporated in South Africa, at Unit 60, 32 Witney Street, Bryanston, Sandton, Gauteng, 2191, South Africa. Head of the private body and Information Officer: Jamie Rood. Deputy Information Officer: Jonathan Kingwill. Telephone +44 204 572 8510. Email for PAIA and POPIA requests: privacy@marking.ai.

The Information Regulator

Requests, complaints and appeals may be directed to the Information Regulator (South Africa), JD House, 27 Stiemens Street, Braamfontein, Johannesburg, 2001 - enquiries@inforegulator.org.za, PAIAComplaints@inforegulator.org.za, POPIAComplaints@inforegulator.org.za, inforegulator.org.za. The Regulator has published a guide on how to use PAIA, available in each official language on its website.

Records we hold

For the purposes of PAIA we hold, among others: company and statutory records; financial records; employment records; customer and commercial records including school site licences, order forms and data processing addenda; the operational records of the Marking.ai service; technical and product records; marketing records; and data protection records including this manual, our privacy policy, our sub-processor register and our impact assessments.

Listing a category does not mean its records are automatically available: access is subject to the grounds of refusal in PAIA and to our obligations to third parties. In particular, for student records we act as an operator on behalf of the school, which is the responsible party and holds the educational record; a request for those records should ordinarily go to the school, and we will refer it and assist.

Requests under POPIA

Separately from PAIA, a data subject may request access to, or correction or deletion of, the personal information we hold about them, and may object to processing or to direct marketing, using the relevant POPIA forms. Send requests to privacy@marking.ai; we respond within 30 days and may verify identity first.

Fees and availability

The request and access fees prescribed under PAIA apply, except that a personal requester seeking their own information pays no request fee; we notify the access fee before providing access. This manual is available on this page free of charge, at our principal place of business for inspection, and from the Information Regulator.

Assessment terms explained

Plain-English definitions of the vocabulary used on this page.

AI markingAI marking is the use of artificial intelligence to assess student work against defined criteria - a mark scheme or a teacher's own marking guidelines - and to draft marks and feedback for a teacher to review.

Assessment for learningAssessment for learning is the practice of using evidence of what students currently understand to decide what to teach next, and to help students see what they need to do to improve.

Assessment objectivesAssessment objectives are the categories of skill a qualification tests - commonly labelled AO1, AO2 and AO3 - each carrying a defined share of the available marks.

Comparative judgementComparative judgement is an assessment method in which markers repeatedly choose the better of two pieces of work, and those paired decisions are combined statistically into a rank order.

Criterion-referenced assessmentCriterion-referenced assessment judges work against defined standards of what a student should know or be able to do, rather than against how other students performed.

ExemplarAn exemplar is a piece of work - often a real student answer - presented with its marks and commentary to show what a particular standard looks like in practice.

Questions about how we handle school work?

The security pages set out what we hold, where it is processed and who else touches it. If you cannot find an answer there, a person will reply.

Ask a questionHow we handle school data

05 | Terms

https://marking.ai/terms

Webpage text snapshot | Retrieved 10 October 2026

Legal

Terms and conditions

These terms govern your use of Marking.ai. Schools buying a licence contract on our School Site Licence and Data Processing Addendum instead, which take precedence where they differ. Last updated 22 August 2026.

What are the terms of using Marking.ai?

Ask ChatGPTAsk ClaudeAsk Gemini

Marking.ai assists teachers in marking student work: the AI transcribes answers, proposes marks against your marking guide and drafts feedback, and a teacher reviews and approves everything. You must be 18 to hold an account, you are responsible for having a lawful basis for the student work you upload, and you must review AI-proposed marks before releasing them. Plans are measured in submissions; a first subscription payment carries a 14-day money-back period, and individual subscriptions are sold through Lemon Squeezy as merchant of record. Our liability is capped, with the usual carve-outs, and disputes are governed by South African law with arbitration in Johannesburg for individual users.

Who these terms are between

These terms form a contract between you and Marking.ai (Pty) Ltd (registration number 2024/023842/07), incorporated in South Africa. If you are buying a licence for a school, college or multi-academy trust, your agreement is our School Site Licence together with our Data Processing Addendum, and those take precedence over these terms wherever they differ.

Your account

You must be at least 18 to hold an account. Accounts are for teachers and other education professionals and the institutions that employ them. You are responsible for your credentials and for activity under your account, and you may not share a login - invite colleagues instead, which costs nothing extra.

The service

Marking.ai is a tool for a qualified person to use, not a substitute for professional judgement. We may change features, and where a change materially reduces functionality you rely on we will give reasonable notice.

Plans and allowances

The unit is a submission: one student's work, submitted against one assessment, and marked for the first time. Re-marking a question, regenerating feedback, generating class summaries and producing insights and exports do not consume your allowance. Monthly allowances do not roll over; top-ups do not expire and survive cancellation.

Artificial intelligence and your review obligation

Every mark, rationale, annotation and piece of feedback the AI produces is a proposal. You must review it, and nothing reaches a student until you approve it. This is a term of the contract, not only a recommendation: the human review is what keeps marking from being a solely automated decision.

Your responsibilities for student information

You confirm that you act with your school's authority and in line with its data protection policies, and that you have a lawful basis for every student whose work you upload. If you are unsure, remove student names before uploading - the product marks unnamed work normally.

Intellectual property

You keep ownership of your Customer Content - the student work, marking guides and instructions you upload. You own the marks and feedback the service produces from it. We keep ownership of the service itself.

Refunds, liability and governing law

A first subscription payment carries a 14-day money-back period; individual subscriptions are sold through Lemon Squeezy as merchant of record, and Lemon Squeezy processes any refund under its own terms. Our liability is capped at the fees paid in the preceding twelve months subject to a floor, with carve-outs for death or personal injury, fraud, data protection breach and anything that cannot lawfully be limited, and your non-excludable consumer rights are preserved. Individual terms are governed by South African law with AFSA arbitration in Johannesburg, subject to mandatory consumer protections in your country of residence; school licences are governed by the law of England and Wales where the school is UK-established, and South African law otherwise.

The full terms are set out in our signed Terms and Conditions.

Marking.ai (Pty) Ltd, registration number 2024/023842/07, Unit 60, 32 Witney Street, Bryanston, Sandton, Gauteng, 2191, South Africa. Information Officer: Jamie Rood. Contact: privacy@marking.ai.

Assessment terms explained

Plain-English definitions of the vocabulary used on this page.

AI markingAI marking is the use of artificial intelligence to assess student work against defined criteria - a mark scheme or a teacher's own marking guidelines - and to draft marks and feedback for a teacher to review.

Assessment for learningAssessment for learning is the practice of using evidence of what students currently understand to decide what to teach next, and to help students see what they need to do to improve.

Assessment objectivesAssessment objectives are the categories of skill a qualification tests - commonly labelled AO1, AO2 and AO3 - each carrying a defined share of the available marks.

Comparative judgementComparative judgement is an assessment method in which markers repeatedly choose the better of two pieces of work, and those paired decisions are combined statistically into a rank order.

Criterion-referenced assessmentCriterion-referenced assessment judges work against defined standards of what a student should know or be able to do, rather than against how other students performed.

ExemplarAn exemplar is a piece of work - often a real student answer - presented with its marks and commentary to show what a particular standard looks like in practice.

Questions about how we handle school work?

The security pages set out what we hold, where it is processed and who else touches it. If you cannot find an answer there, a person will reply.

Ask a questionHow we handle school data